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May 20, 2015					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 1946(F)

SMARTSTONE PRIVATE LIMITED

v.

**GENERAL NOLI USA, INC. and
SAVINO DEL BENE FREIGHT FORWARDERS (INDIA) PVT LTD**

ORDER GRANTING REQUEST FOR EXTENSION OF BRIEFING

On May 19, 2015, Respondents General Noli USA, Inc. and Savino Del Bene Freight Forwarders (India) Pvt Ltd filed a letter motion requesting a fifteen-day extension of time to file their Opposition Brief. They indicate that Complainant Smartstone Private Limited does not consent based on Smartstone's belief that deadlines may not be altered by consent of the parties. The extension is requested to enable the parties to pursue settlement discussions.

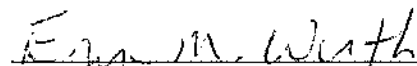
The Commission has a strong and consistent policy of "encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid." *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002), quoting *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 18 S.R.R. 1085, 1091 (ALJ 1978) (*Old Ben Coal*). Settlements are often in the best interest of parties as they permit resolution on terms agreeable to both. If the parties are able to settle their dispute, they should file a motion seeking approval of the settlement agreement addressing the factors in *Old Ben Coal*, with a copy of the settlement agreement.

Respondents will be given the brief extension requested, and the schedule will be amended to reflect the extension. However, if the matter is not resolved within this time frame, the parties should be prepared to continue briefing their cases without further extension.

For the reasons stated above, it is hereby **ORDERED** that the parties comply with the following amended deadlines:

June 1, 2015 Respondents shall file their Opposition Brief.

June 22, 2015 Smartstone shall file its Reply Brief.


Erin M. Wirth
Administrative Law Judge